

# HOUSE . . . . . No. 538

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## The Commonwealth of Massachusetts

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PRESENTED BY:

***Leigh Davis***

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*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act regarding school regionalization.

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PETITION OF:

| NAME:                   | DISTRICT/ADDRESS:    | DATE ADDED:      |
|-------------------------|----------------------|------------------|
| <i>Leigh Davis</i>      | <i>3rd Berkshire</i> | <i>1/16/2025</i> |
| <i>Natalie M. Blais</i> | <i>1st Franklin</i>  | <i>2/18/2025</i> |
| <i>Kelly W. Pease</i>   | <i>4th Hampden</i>   | <i>3/17/2025</i> |

# HOUSE . . . . . No. 538

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By Representative Davis of Great Barrington, a petition (accompanied by bill, House, No. 538) of Leigh Davis and Natalie M. Blais relative to regional schools. Education.

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## The Commonwealth of Massachusetts

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In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
\_\_\_\_\_

An Act regarding school regionalization.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           SECTION 1. Chapter 15 of the General Laws is hereby amended by adding the following  
2 section:-

3           Section 67. (a) There shall be within the department an office of shared services, which  
4 shall be under the supervision and management of the director of shared services. The director  
5 shall be appointed by the commissioner.

6           (b) The office of shared services shall oversee the formation of regional school districts  
7 and superintendent unions in the commonwealth. The director of shared services shall assist  
8 school districts that are considering forming or are in the process of forming regional school  
9 districts and superintendent unions with the research, development and execution of shared  
10 services projects and shared services agreements.

11          SECTION 2. Section 10 of chapter 70B, as so appearing, is hereby amended by adding  
12 the following subsection:-

(d) Notwithstanding the first paragraph of this section, the grant percentage for approved school facilities projects in regional school districts shall be at least ninety percent.

SECTION 3. Said chapter 70B of the General Laws is hereby further amended by adding the following section:-

Section 22. (a) Upon the closure of a school as a result of a school district regionalization effort, the authority shall relieve any debt that was accrued as a result of the establishment and maintenance of the school's facilities that is owed to the authority by the municipality wherein the school is located.

(b) Upon the closure of a school as a result of a school district regionalization effort, the authority, in collaboration with the executive office of economic development, shall offer assistance to the municipality wherein the school is located for the development of a plan for demolition or use of the school building for other purposes, including any technical assistance for school building reuse and the retrofitting of school buildings for other purposes.

SECTION 4. Section 16D of said chapter 71, as appearing in the 2022 Official Edition, is hereby amended by striking out subsection (g) and inserting in place thereof the following subsection:-

(g) A regional school district shall receive state aid for the transitional costs associated with the establishment of the regional school district. A regional school district shall be entitled to aid under this subsection for the first three years of its operation. The state treasurer shall, upon certification by the commissioner, annually, on or before November twentieth, pay to each regional school district in its first three years of operation two-hundred dollars per pupil enrolled by the regional school district.

SECTION 5. Said section 16D of said chapter 71, as so appearing, is hereby further amended by adding the following subsection:-

(h) A regional school district shall receive state aid to cover the salaries of temporary school district employees, including, but limited to, an assistant superintendent, assistant business manager, assistant information technology director and assistant pupil services director. A regional school district shall receive aid under this subsection for the first 2 years of its operation. The state treasurer shall, upon certification by the commissioner, annually, on or before November twentieth, pay to each regional school district in its first 2 years of operation a sum to be determined by the commissioner.

SECTION 6. Said chapter 71 is hereby further amended by inserting after section 16I the following 3 sections:-

Section 16J. (a) There is hereby established and set upon the books of the commonwealth a separate fund known as the School District Regionalization Grant Fund. The fund shall be credited with: (i) appropriations or other money authorized or transferred by the general court and specifically designated to be credited to the fund; (ii) funds from public and private sources, including, but not limited to gifts, grants and donations; and (iii) any interest earned on such money. Amounts credited shall not be subject to appropriation and shall be expended by the department to fund a grant program for the study, planning and implementation of school district regionalization efforts to be administered by the department in accordance with this section; and provided further, that grant funds awarded pursuant to this section shall be distributed evenly over a 3 year period.

(b) A qualified school eligible for funding are towns and regional school districts, excluding vocational schools, independent agricultural, technical schools and charter schools; provided, that a school district shall be eligible for a school district regionalization grant if it is considering forming, is in the process of forming or has formed within the past 5 years a regional school district or regionalizing services; provided, that, that school district regionalization grants shall be allocated equitably in the following priority order: (i) school districts with significant enrollment decline as defined by the department of elementary and secondary education; (ii) school districts where existing school space is underutilized; and (iii) school districts where the regionalization proposal will produce significant expansion of available academic resources and supports as a result of cost savings.

(c) Annually, not later than February 1, any district receiving funds under this item shall submit a report to the department outlining the progress the district has made in studying, planning or implementing regionalization or regionalization services.

(d) Annually, not later than December 1, the department shall submit a report to the house and senate committees on ways and means detailing the calculation and planned distribution of funds to school districts; provided, that, funds distributed from this section shall not be considered chapter 70 aid for the calculation of the minimum required local contribution for the upcoming fiscal year.

(e) Every 5 years, the department shall determine the adequacy of funding for the purposes of this section and recommend to the general court any necessary adjustment.

(f) A grant awarded to a school district pursuant to this section shall not exceed one million five hundred thousand dollars over a 3 year period.

78           Section 16K. (a) There is hereby established and set upon the books of the  
79   commonwealth a separate fund known as the Regional School District Foundational Aid Fund.  
80   The fund shall be credited with: (i) appropriations or other money authorized or transferred by  
81   the general court and specifically designated to be credited to the fund; (ii) funds from public and  
82   private sources, including, but not limited to gifts, grants and donations; and (iii) any interest  
83   earned on such money. Amounts credited shall not be subject to appropriation and shall be  
84   expended by the department to fund a grant program for regional school districts that experience  
85   a drop in foundational aid as a result of regionalization to be administered by the department in  
86   accordance with this section.

87           (b) A qualified school eligible for funding are regional school districts, excluding  
88   vocational schools, independent agricultural, technical schools and charter schools; provided,  
89   that any regional school district within its first 5 years of operation that has received less  
90   foundational aid than any of its member school districts received in the 5 years preceding  
91   regionalization shall be entitled to a grant equal to the difference in foundational funding  
92   between the member school district prior to regionalization and the foundational funding  
93   received by the regional school district.

94           (c) Annually, not later than December first, the department shall submit a report to the  
95   house and senate committees on ways and means detailing the calculation and planned  
96   distribution of funds to school districts; provided, that, funds distributed from this section shall  
97   not be considered chapter 70 aid for the calculation of the minimum required local contribution  
98   for the upcoming fiscal year.

(d) Every 5 years, the department shall determine the adequacy of funding for the purposes of this section and recommend to the general court any necessary adjustment.

Section 16L. (a) There is hereby established and set upon the books of the commonwealth a separate fund known as the Superintendent Union Formation Grant Fund. The fund shall be credited with: (i) appropriations or other money authorized or transferred by the general court and specifically designated to be credited to the fund; (ii) funds from public and private sources, including, but not limited to gifts, grants and donations; and (iii) any interest earned on such money. Amounts credited shall not be subject to appropriation and shall be expended by the department to fund a grant program for the development of superintendent unions to be administered by the department in accordance with this section.

(b) A qualified school eligible for funding are school districts, excluding vocational schools, independent agricultural, technical schools and charter schools; provided, that a school district shall be eligible for a superintendent union formation grant if (i) school district regionalization is not desired by the school district community or is not practicable for any reason and (ii) the school district is considering forming, is in the process of forming or has formed within the past 5 years a superintendent union pursuant to section 61.

(c) Annually, not later than February first, any district receiving funds under this item shall submit a report to the department outlining progress the district has made in studying, planning or implementing a superintendent union.

(d) Annually, not later than December first, the department shall submit a report to the house and senate committees on ways and means detailing the calculation and planned distribution of funds to school districts; provided, that, funds distributed from this section shall

121 not be considered chapter 70 aid for the calculation of the minimum required local contribution  
122 for the upcoming fiscal year.

123 (e) Every 5 years, the department shall determine the adequacy of funding for the  
124 purposes of this section and recommend to the general court any necessary adjustment.

125 (f) A grant awarded pursuant to this section shall not exceed two hundred and fifty-  
126 thousand dollars annually.